

25VECV02344 25VECV02344

County: los-angeles

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25VECV02344 ABRAMIAN V GOMEZ

[TENTATIVE] ORDER: Defendants Virginia Gomez and MV Transportation, Inc.'s Motions to Compel Compliance with Deposition Subpoena for Business Records and Deposition Subpoena for Personal Appearance are DENIED without prejudice.

Introduction

Defendants Virginia Gomez and MV Transportation, Inc. move to compel compliance with their deposition subpoena for personal appearance and the production of business records issued to non-party Max Gannadi, M.D.

Procedure

The motion is denied without prejudice on procedural grounds. Although there is proof of personal service the deposition subpoenas were served on the non-party, there is no proof of service the non-party was served with notice of these motions. California Rules of Court, rule 3.1346 requires a motion to compel compliance with a deposition subpoena to be personally served on the non-party whose compliance is sought. (California Rule of Court, rule 3.1346.)

Furthermore, there was no separate statement which is required when there is a motion to compel production of documents at a deposition which also supports denial of the motion. (California Rule of Court, rule 3.1345.)

The request for sanctions is also denied.

IT IS SO ORDERED, DEFENDANTS TO GIVE NOTICE.